

Vendor Disclosure & Contract Checklist — Western Australia

Your obligations as a seller — get this right, because there's no cooling-off period to smooth over gaps.

Correct as at July 2026. General information only, not legal advice. Your contract of sale should be prepared with a settlement agent or solicitor — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your Position as a WA Vendor

- ☐ [] **Know that WA has no statutory cooling-off period for either party.** This makes accurate, complete disclosure and a properly prepared contract especially important — once your buyer signs, there's no grace period during which incomplete information can be quietly corrected without risk.
- ☐ [] **Understand your general disclosure obligations.** While WA's disclosure framework differs in structure from states with a dedicated statutory "vendor statement" regime, sellers still have obligations to avoid misleading or deceptive conduct, and known material defects should be disclosed to avoid later disputes or claims.
- ☐ [] **Work with your settlement agent or solicitor to prepare the contract properly before marketing begins** — given there's no cooling-off buffer, a well-prepared contract reduces the risk of disputes arising after a binding signature.

Section 2 — Information to Gather for Your Settlement Agent/Solicitor

- ☐ [] **Title details and any encumbrances** — mortgages, easements, covenants affecting the land.
- ☐ [] **Zoning and planning information.**
- ☐ [] **Known building work history and any relevant approvals.**
- ☐ [] **Strata records**, if applicable — recent meeting minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [] **Any known defects or issues** you're aware of, even if not immediately obvious — full disclosure protects you from post-settlement disputes.

Section 3 — Underquoting and Price Transparency

- ☐ [] **Discuss price guide practices with your agent.** While WA's specific regulatory framework around price representations differs from some eastern states, misleading price conduct can still raise consumer protection issues — ask your agent how they'll represent price expectations to prospective buyers.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price to generate interest.**

Section 4 — Auction and Private Treaty Considerations

- ☐ [] **Understand there's no cooling-off period regardless of sale method** in WA — this differs from most eastern states where auctions specifically lack cooling-off but private treaty sales have one.
- ☐ [] **Ensure your contract is genuinely complete and accurate before marketing begins**, since both auction and private treaty buyers will be immediately bound upon signing.

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your contract of sale is complete and reviewed by your settlement agent/solicitor** before your first open home.
- ☐ [] **Cross-check the contract against your own knowledge of the property** — flag any inconsistency with your settlement agent/solicitor immediately.
- ☐ [] **Keep a copy of everything provided to buyers.**

Quick Reference — WA Vendor Disclosure Essentials

Requirement	Key Detail
Cooling-off period	None — for either party, either sale method
Contract preparation	Settlement agent/solicitor, before marketing begins
Disclosure obligations	Avoid misleading/deceptive conduct; disclose known material defects
Strata records	Required if applicable — gather early

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